

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT IN WHICH YOU WERE
ACCUSED OR CONVICTED, AND ITS COUNTY; OR, WHERE THE FELONY CHARGE WAS
DISMISSED, THE SUPERIOR COURT OF THE COUNTY WHERE THE ARREST OCCURRED
(STATE, SUPERIOR, MAGISTRATE, PROBATE OR MUNICIPAL; YOUR OWN CASE PAPERS
NAME IT, AND THE INSTRUCTIONS PAGE SAYS WHO CAN CONFIRM IT))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION (FELONY
CHARGE)
(O.C.G.A. Sec. 35-3-37(j)(1))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal
case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(1). The
defendant states:

1. The defendant was charged with a felony offense in the above-styled case. That felony charge was
dismissed or nolle prossed, or the defendant was found not guilty of it, while the defendant was convicted
of a misdemeanor offense.
2. The defendant asserts that the misdemeanor offense of conviction was not a lesser included offense of
the felony charge. This is the defendant's own assertion, or defendant's counsel's; this packet does not
generate that conclusion, and attorney review of it is recommended before filing.
3. This petition is filed within four years of the date of arrest stated below. The four-year period is a filing
deadline running from the arrest.
4. The harm otherwise resulting to the defendant clearly outweighs the public interest in the criminal
history record information being publicly available.
5. The relief requested restricts the felony charge only and does not reach the misdemeanor conviction.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from
memory; the instructions page lists where each record lives):

Date of arrest in this case - the four-year filing deadline runs from this date:

.....

Georgia county in which the arrest occurred:

.....

Exact O.C.G.A. Code section of the felony charge to be restricted:

.....

How the felony charge was resolved - dismissed, nolle prossed, or found not guilty:

.....

Exact O.C.G.A. Code section of the misdemeanor conviction:

.....

Your own statement of what has changed and how this felony charge on your record has been a barrier (state only what you know first-hand; nothing on these lines is written for you):

.....

.....

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to the felony charge only, pursuant to O.C.G.A. Sec. 35-3-37(j)(1), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the petition be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-only:GA:ga-felony-j1

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STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(FELONY CHARGE ONLY)
(O.C.G.A. Sec. 35-3-37(j)(1))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict Access to Criminal History Record Information
(Felony Charge) under O.C.G.A. Sec. 35-3-37(j)(1).

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to the felony charge in this case, identified by the OTN and the date
of arrest stated below, pursuant to O.C.G.A. Sec. 35-3-37(j)(1).

This order restricts the felony charge only. It does not reach the misdemeanor conviction.

Disclosure of the restricted information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict Access to Criminal History Record Information (Felony Charge) and the
accompanying proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

NAME AND SERVICE ADDRESS OF THE ARRESTING LAW ENFORCEMENT AGENCY (this
route requires notice to the arresting agency as well; confirm the service destination with that agency
before serving):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and

signed when the copies actually go out. A date or a signature written before the copies go out would be false.

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EXHIBIT A - FINAL DISPOSITION

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Felony Charge) in this packet.

ATTACH BEHIND THIS PAGE: a copy of the final disposition of this case.

WHERE YOU GET IT: the clerk of the court that handled the case.

HOW: Ask the clerk of the convicting or accusing court for a copy of the final disposition and attach it behind this page.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

Route: obligation:track-only:GA:ga-felony-j1

EXHIBIT B - GEORGIA CRIMINAL HISTORY REPORT

ATTACH THIS ONLY WHERE YOU RELY ON IT OR THE COURT EXPECTS IT.

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Felony Charge) in this packet.

ATTACH BEHIND THIS PAGE: your own Georgia criminal history report.

WHERE YOU GET IT: most Georgia sheriff's offices and police departments, or GCIC.

HOW: GBI's guidance says a Georgia criminal history record can be obtained from most sheriff's offices or police departments, with requirements varying by agency.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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